

Mahboob Ahmad v. Commissioner, Moradabad & Another

Allahabad High Court · Single Judge · 14 September 2017 · 2017 SCC OnLine All 2112 · Writ - C No. 39224 of 2017 · **Writ petition disposed of; interference declined; time granted to deposit the reduced amount**

HEADNOTE

Where the appellate authority under Section 127 of the Electricity Act, 2003 has examined a theft (s.126) assessment on appeal and substantially reduced it — here from Rs. 73,920 to Rs. 17,520 — the writ court will not re-examine the quantum of the assessment. Having declined to interfere, the Court disposed of the petition by allowing the consumer three months to deposit the reduced amount and directing regular payment of bills.

HOLDING-UNITS

INTERPLAY · EA2003::127

No writ re-examination of the quantum reduced by the s.127 appellate authority

QUESTION

Should the writ court re-examine a s.126 assessment that the s.127 appellate authority has already examined and reduced?

HOLDING

No. The appellate authority having examined the assessment and reduced it from Rs. 73,920 to Rs. 17,520, the Court was not inclined to interfere with the quantum. The petition was disposed of allowing the consumer three months to deposit the reduced amount and directing regular bill payment. ¶ 4-6

LIMITING FACTS

s.135 FIR and s.126 assessment of Rs. 73,920; reduced to Rs. 17,520 on the s.127 appeal by the Commissioner.

PRINCIPLE TAGS

no-writ-interference-with-s127-appellate-quantum The writ court will not re-examine the quantum of a s.126 assessment that the s.127 appellate authority has considered and reduced; the consumer's remedy is to comply, not to re-litigate the amount in writ. ¶ 4-6